

TENTATIVE RULING

Case: **Creekside Davis LP v. Mauvais**
Case No. CV2026-0461

Hearing Date: **March 13, 2026** **Department Two** **1:30 p.m.**

Defendants Elizabeth Mauvais and William Mauvais' request for judicial notice is **GRANTED**. (Evid. Code, §§ 451, subd. (b), 452, subd. (c).)

Plaintiff Creekside Davis LP's request for judicial notice is **GRANTED IN PART**. (Evid. Code, §§ 451, 452, 453.) The Court takes judicial notice of Exhibits 1, 2, and 3. However, plaintiff does not articulate the specific legal basis for this Court to take judicial notice of Exhibits 4, 5, and 6 and therefore, the Court declines to take judicial notice of these documents.

Defendants' demurrer to plaintiff's complaint is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that the issue raised by the demurrer is a mixed question of law and fact and therefore, not proper for disposal on demurrer. (*Bath v. State of California* (2024) 105 Cal.App.5th 1184, 1201 ["Questions of fact cannot be decided on demurrer"]; 24 C.F.R. § 5.2005, subds. (a)(1)(i), (a)(2)(iii); Complaint, ¶ 9(e), Exhibit 2; Defendants' RJN, Exhibits A & B; Plaintiff's RJN, Exhibits 1, 2, & 3.)

Defendants are ordered to file their answer by **March 18, 2026**. (Cal. Rules of Court, rule 3.1320(g).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Mitchell v. Langston**
 Case No. CV2025-3055

Hearing Date: **March 13, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Frederick Mitchell’s motion to strike the materially false and improper matter is **DROPPED FROM CALENDAR AS MOOT.** (Code Civ. Proc., §§ 436, subd. (a), 2015.5.) On March 5, 2026, this Court sustained without leave to amend defendant Theresa Langston’s demurrer. (See *In re S.P.* (2020) 53 Cal.App.5th 13, 16 [“Courts do not decide issues that can provide no effective relief for the parties or will have no impact on their future rights”]; see also *Hagan Engineering, Inc. v. Mills* (2003) 115 Cal.App.4th 1004, 1007-1008.)